

TENTATIVE RULING FOR September 11, 2026

Department S22 – Judge David Driscoll

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You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2609016

VARTOUHIE GEOVSHANIAN v. SONIA GOULUMIAN

TENTATIVE RULING

On April 6, 2026, Plaintiff Vartouhie Geovshanian filed a complaint against Defendant Sonia Goulumian, alleging causes of action: (1) quiet title; (2) cancellation of deed; (3) fraud; (4) constructive trust; and (5) elder abuse arising from an October 2015 transfer of real property located at 7169 Petaluma Drive in Fontana. (Compl. ¶¶ 22-41.)

Defendant was served with the summons and complaint on May 19, 2026. On July 6, 2026, Plaintiff requested entry of default, and Defendant's default was entered that day. Approximately two weeks later, Defendant filed an ex parte application seeking relief from default on July 20, 2026. The Court denied the ex parte for Defendant to file a noticed motion.

Now before the Court is Defendant's motion to set aside the entry of default based on Defendant's mistake and surprise. Plaintiff opposes and Defendant replies. Although the parties at times refer to a "default judgment," the Register of Actions reflects only an entry of default, not entry of a default judgment.

Under the discretionary provision of Code of Civil Procedure section 473, subdivision (b), the Court may relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through mistake, inadvertence, surprise, or excusable neglect. The application must be made within a reasonable time, not exceeding six months. To obtain discretionary relief based on mistake or neglect, the moving party must establish that the mistake or neglect was excusable—that is,

one a reasonably prudent person under similar circumstances might have made. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.) The moving party must also act diligently in seeking relief. (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1420.)

Section 473 is liberally applied because the law favors determination of actions on their merits. Where a party in default acts promptly to seek relief, very slight evidence may justify setting aside the default, and doubts are resolved in favor of relief. (*Shamblin v. Brattain* (1988) 44 Cal.3d 474, 478–479.) An application for relief must also be accompanied by a copy of the answer or other pleading proposed to be filed. (Code Civ. Proc., § 473, subd. (b).)

Analysis

Defendant contends the default should be set aside because she timely attempted to respond by demurrer but, through mistake or surprise, the demurrer was not filed. She also argues that she has substantive defenses based on the statute of limitations and the scope of a 2009 Power of Attorney.

Plaintiff argues Defendant has not shown excusable neglect or diligence because the record does not establish that the demurrer and filing fees were timely submitted to the Court. Plaintiff also disputes Defendant's proposed defenses.

In reply, Defendant submits additional evidence concerning the attempted filing and raises, for the first time, a request for terminating sanctions and dismissal based on alleged litigation misconduct.

Defendant Has Shown Sufficient Grounds for Discretionary Relief

Defendant's contention that the default resulted from a clerical error by the Court is not adequately supported by the present record. Although Defendant states that her document preparer physically submitted the demurrer to the Court on June 17, 2026, there is no Court generated record confirming receipt of the demurrer for filing. Exhibit C is a transmittal letter from Defendant's document preparer and, standing alone, does not establish delivery to or receipt by the Court. (Goulumian Decl., Exh. C.)

Nevertheless, the evidence submitted with the moving papers demonstrates that Defendant undertook timely efforts to respond to the complaint. Defendant retained Elite Paralegal Service to prepare and file a demurrer, signed the demurrer on June 15, 2026, and obtained a September 9 hearing reservation on June 17, 2026. (Goulumian Decl. ¶¶ 2–5; Exh. A.) The motion also includes a proof of service executed under penalty of perjury stating that the demurrer was mailed to Plaintiff on June 17. (Goulumian Decl., Exh. B.) Although this evidence does not establish that the demurrer was filed, it supports a finding that Defendant intended to respond timely and that the resulting default arose from mistake or neglect in completing the filing process rather than an intentional failure to respond. Under these circumstances, Defendant's reliance on the document preparer to complete the filing process was not so unreasonable as to preclude discretionary relief.

Defendant also acted promptly after entry of default. Default was entered on July 6, 2026; Defendant sought ex parte relief on July 20, 2026, and filed the present noticed motion on August 12, 2026. In light of Defendant's pre-default efforts to respond and prompt application for relief, the showing is sufficient to warrant discretionary relief under section 473, subdivision (b).

In reply, Defendant submits additional facts concerning her efforts to monitor the status of the demurrer, including communications with Court personnel regarding an asserted administrative backlog and the September 9 hearing reservation. (Goulumian Reply Decl. ¶¶ 5–6.) Because those factual assertions

were presented for the first time in reply, the Court does not rely on them in determining whether Defendant has established grounds for relief.

Plaintiff has not shown that setting aside the default would result in substantial prejudice. Although default was entered on July 6, 2026, the parties thereafter litigated Plaintiff's request for preliminary injunctive relief, including Defendant's opposition, and the Court ultimately granted a preliminary injunction preserving the subject property. The preliminary injunction remains in place, and no default judgment has been entered. Under these circumstances, the policy favoring resolution on the merits weighs in favor of relief.

The Underlying Merits Need Not Be Resolved

Both parties argue the merits of Defendant's proposed defenses. Defendant contends Plaintiff's claims are time barred and that the 2009 Power of Attorney authorized the 2015 conveyance. Plaintiff disputes those contentions and relies on delayed discovery.

Section 473 expressly provides that no declaration of merits is required. (Code Civ. Proc., § 473, subd. (b).) Defendant attached the demurrer she proposes to file, thereby satisfying the statutory pleading requirement. The parties' competing arguments concern the merits of the action and need not be resolved.

Defendant's Request for Terminating Sanctions Is Denied

Defendant's noticed motion sought only relief from default. In reply, Defendant requests dismissal with prejudice as a terminating sanction based on alleged service misconduct, violation of an oral Court directive, and alteration or destruction of electronic evidence.

The request is not properly before the Court because it was raised for the first time in reply, and the underlying factual allegations are disputed. The request is therefore denied.

TENTATIVE RULING

Defendant Sonia Goulumian's motion to set aside the July 6, 2026 entry of default pursuant to Code of Civil Procedure section 473, subdivision (b), is granted. Defendant has demonstrated sufficient grounds for discretionary relief based on her timely efforts to respond to the complaint and prompt application for relief after entry of default.

Defendant's request for terminating sanctions and dismissal with prejudice, which was raised for the first time in reply, is denied.